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Case Number: 26TRCV00415 Hearing Date: August 10, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SABIO HOLDINGS INC.

, et al.;

Plaintiffs,

vs.

PLANET HOLLYWOOD LLC

, et al.;

Defendants.

Case

No.:

26TRCV00415

Hearing

Date:

August
10, 2026

Time:

1:30 p.m.

[tentative]

Order RE:

(1)

SPECIALLY APPEARING DEFENDANT MARRIOTT
INTERNATIONAL, INC.'S MOTION TO QUASH PLAINTIFFS' SERVICE OF SUMMONS AND
COMPLAINT FOR LACK OF PERSONAL JURISDICTION

(2)

PLAINTIFFS SABIO HOLDINGS INC. AND SABIO
INC.'S REQUEST TO CONTINUE THE HEARING AND PERMIT JURISDICTIONAL DISCOVERY

MOVING PARTY: Specially Appearing Defendant, Marriott
International, Inc.

RESPONDING PARTY: Plaintiffs, Sabio Holdings Inc. and Sabio
Inc.

(1)

Specially
Appearing Defendant Marriott International, Inc.'s Motion to Quash Plaintiffs'
Service of Summons and Complaint for Lack of Personal Jurisdiction is GRANTED
pursuant to Code of Civil Procedure sections 410.10 and 418.10.

(2)

Plaintiffs
Sabio Holdings Inc. and Sabio Inc.'s Requests to Continue the Hearing and
Permit Jurisdictional Discovery are DENIED pursuant to In re Automobile
Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.

The Court considers the moving
papers filed on June 26, 2026, the opposition brief filed on July 28, 2026, the

reply brief filed on August 3, 2026, and the response to objections filed on August 5, 2026.

BACKGROUND

Factual Background

On February 3, 2026, plaintiffs Sabio Holdings Inc. and Sabio Inc. (collectively, "Plaintiffs") filed the Complaint against defendants Planet Hollywood LLC, Planet Hollywood Resorts International, LLC, Planet Hollywood (IP), LLC, Planet Hollywood Coast Rica, Marriott International, Inc., Royalton Hotels International Ltd., and Royalton Hotels, and Resorts, Ltd. The Complaint includes the following causes of action: (1) Breach of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Negligence; (4) Fraudulent Inducement/Intentional Misrepresentation; and (5) Negligent Misrepresentation.

Procedural Background

On June 26, 2026, Marriott International, Inc. ("Defendant") filed this motion.

On July 1, 2026, Planet Hollywood LLC, Planet Hollywood Resorts International, LLC, Planet Hollywood (IP), LLC, and Marriott International, Inc. filed the Ex Parte Application of Specially Appearing Defendants for an Order to Advance the Hearing, or in the Alternative, Confirm or Consolidate the Reserved Noticed Hearing Dates, on Special Appearing Defendants' Respective Motions to Quash for Lack of Personal Jurisdiction.

On July 2, 2026, the Court denied the ex parte application as well as the previously filed Joint Stipulation to Consolidate Hearings and Withdraw Ex Parte Application and Hearing.

On July 28, 2026, Plaintiffs filed an opposition brief. On August 3, 2026, Defendant filed its reply brief. On August 5, 2026, Plaintiffs filed their responses to Defendant's evidentiary objections.

EVIDENTIARY OBJECTIONS

Plaintiffs'
Objections

Sustain: 8 – Lack of foundation and lack of personal knowledge.

Overrule: 1 to 7.

Defendant's
Objections

Sustain:

13 – Hearsay;

14 – Hearsay;

29 – Improper legal conclusion;

31 – Relevance;

32 – Relevance; and

33 – Relevance.

Overrule: 1-12, 15-28, 30, and 34.

LEGAL STANDARD

A defendant may serve and file a notice of motion to quash service of summons on the grounds of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a).) Code of Civil Procedure section 418.10 provides the exclusive procedure for challenging personal jurisdiction at the outset. (Roy v. Superior Court (2005) 127 Cal.App.4th 337, 342.) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to section 418.10. (Code Civ. Proc., § 581, subd. (h).)

“A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of

this state or of the United States.” (Code Civ. Proc., § 410.10.) “The Due Process Clause protects an individual’s liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful ‘contacts, ties, or relations.’” (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471-472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend “traditional notions of fair play and substantial justice.” (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence. (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568.) “When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts.” (Jewish Defense Organization, Inc. v. Superior Court (1999) 72 Cal.App.4th 1045, 1054-1055.)

“Personal jurisdiction may be either general or specific.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445 (Vons).) “A defendant that has substantial, continuous, and systematic contacts with the forum state is subject to general jurisdiction in the state, meaning jurisdiction on any cause of action.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.) “General jurisdiction, as its name implies, extends to any and all claims brought against a defendant. Those claims need not relate to the forum State or the defendant’s activity there; they may concern events and conduct anywhere in the world. But that breadth imposes a correlative limit: Only a select set of affiliations with a forum will expose a defendant to such sweeping jurisdiction. In what [the Supreme Court] ha[s] called the paradigm case, an individual is subject to general jurisdiction in her place of domicile. And the equivalent forums for a corporation are its place of incorporation and principal place of business.” (Preciado

v. Freightliner Custom Chassis Corp. (2023) 87 Cal.App.5th 964, 976, internal citation omitted.)

A nonresident may be subject to specific jurisdiction if a three-prong test is met. "First, the defendant must have purposefully availed itself of the state's benefits. Second, the controversy must be related to or arise out of the defendant's contacts with the state. Third, considering the defendant's contacts with the state and other factors, California's exercise of jurisdiction over the defendant must comport with fair play and substantial justice." (Gilmore Bank v. AsiaTrust New Zealand Ltd. (2014) 223 Cal.App.4th 1558, 1568, internal citations and emphasis omitted.) "When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (Vons, supra, 14 Cal.4th at p. 449, internal citations omitted.)

DISCUSSION

Defendant is seeking to quash the service of the summons, contending that the Court lacks the authority to exercise personal jurisdiction. (Motion, p. 1:2-5.) Defendant asserts that (1) it is not incorporated in California; (2) its principal place of business is not in California; and (3) any contacts it may have with California do not give rise to Plaintiffs' claims. (Motion, p. 1:5-8.)

Conversely, Plaintiffs assert both general and specific personal jurisdiction over Defendant. (Opp., pp. 6:2-12:27.) In the alternative, should the Court determine that additional factual information is necessary, Plaintiffs request that the Court continue the motion and allow for jurisdictional discovery. (Opp., pp. 13:1-14:8.)

Specific Jurisdiction

First Prong: Purposeful Availment

Plaintiffs maintain that Defendant purposefully availed itself by (1) intentionally engaging in commercial activities aimed at California through their websites and reservation system, (2) maintaining a registered agent for franchises and operating a California specific entity, and (3) providing benefits to Plaintiffs through the Marriott Bonvoy membership of the CEO of Sabio Holding. (Opp., pp. 6:19-7:17.)

“An out-of-state defendant purposefully avails itself of a forum state's benefits if the defendant (1) purposefully directs its activities at the forum state's residents, (2) purposefully derives a benefit from its activities in the forum state, or (3) purposefully invokes the privileges and protections of the forum state's laws by (a) purposefully engaging in 'significant activities' within the forum state or (b) purposefully creating 'continuing [contractual] obligations' between itself and the residents of the forum state. [Citations.] Purposeful availment can occur from afar; the out-of-state defendant's physical presence in the forum state is not required. [Citation.]” (Jacqueline B. v. Rawls Law Group, P.C. (2021) 68 Cal.App.5th 243, 253 (Jacqueline B.), internal citations omitted.)

Website

“In assessing whether an out-of-state defendant's operation of a website constitutes purposeful availment, we examine (1) whether the website targets California residents (Snowney, supra, 35 Cal.4th at p. 1063, 29 Cal.Rptr.3d 33, 112 P.3d 28; cf. Yue v. Yang (2021) 62 Cal.App.5th 539, 547, 276 Cal.Rptr.3d 718 [out-of-state defendant sends ‘ “California-focused” social media messages “directly” to California residents,’ knowing their residency; purposeful availment]; Zehia, supra, 45 Cal.App.5th at pp. 556-557, 258 Cal.Rptr.3d 778 [same]; Moncrief v. Clark (2015) 238 Cal.App.4th 1000, 1006-1007, 189 Cal.Rptr.3d 864 [out-of-state resident made false representations to California-based attorneys to induce purchase of farm equipment; purposeful availment]), and, if it does not, (2) where the website falls on a ‘sliding scale’ of ‘interactivity’ with Internet users, with websites allowing the out-of-state defendant to conduct business with California residents at one end of the scale and websites that passively make information available at the other end (Snowney, at pp. 1063-1064, 29 Cal.Rptr.3d 33, 112 P.3d 28; Pavlovich, supra, 29 Cal.4th at p. 274, 127 Cal.Rptr.2d 329, 58 P.3d 2)” (Jacqueline

B., supra, 68 Cal.App.5th at pp. 254-255.) "The middle ground is occupied by interactive Web sites where a user can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site." (Zippo Mfg. Co. v. Zippo Dot Com, Inc. (W.D.Pa. 1997) 952 F.Supp. 1119, 1124.)

Plaintiffs contend that Defendant has "purposefully directed commercial activity toward California" through its websites. (Opp., p. 6:5-6.)

Similar to the case of Jacqueline B., "the evidence shows that Defendant did not target California residents (and hence that any effect on those residents was not intended)[.]" (Jacqueline B., supra, 68 Cal.App.5th at p. 255.) Plaintiffs provide evidence indicating that Defendant advertised Planet Hollywood Costa Rica by Royalton, An Autograph Collection All-Inclusive Resort, globally through its website, including to California residents. (Declaration of Adam J. Reis ("Reis Decl."), ¶ 3, Exh. 2.) Furthermore, Defendant's privacy choices page permitted California residents to exercise their Do Not Sell rights under the California Consumer Privacy Act. (Reis Decl., ¶ 4, Exh. 3.) Exhibit 4 demonstrates that individuals worldwide can reserve rooms via a website purportedly managed by Defendant. (Reis Decl., ¶ 5, Exh. 4.) However, the Court notes that the website does not indicate whether individuals can make payments for their rooms online. Exhibit 5 outlines the terms and conditions of Defendant's Loyalty Program. (Reis Decl., ¶ 6, Exh. 5.) In Exhibit 6, California is mentioned only in a brief statement: "California Residents: AGA Service Company is doing business in California as Allianz Global Assistant Insurance Agency, License # 0B01400. California offers a toll-free consumer hotline at 1800927-4357." (Reis Decl., ¶ 7, Exh. 6.)

However, none of these documents convincingly demonstrate that Defendant targeted California residents. Allowing access to individuals globally and providing limited information specifically for California residents does not establish that Defendant directed any activities toward California. Rather, it suggests that Defendant seeks to serve a broad and diverse audience.

Further, Plaintiffs

contends that *Snowney v. Harrah's Entertainment, Inc.* (2005) 35 Cal.4th 1054 (*Snowney*) is on point. (Opp., pp. 6:22-7:6.)

In *Snowney*,

the Supreme Court of California found that “[b]y touting the proximity of their hotels to California and providing driving directions from California to their hotels, defendants’ Web site specifically targeted residents of California. [Citation.] Defendants also concede that many of their patrons come from California and that some of these patrons undoubtedly made reservations using their Web site. As such, defendants have purposefully derived a benefit from their Internet activities in California [citation] and have established a substantial connection with California through their Web site [citation].” (*Snowney*, supra, 35 Cal.4th at pp. 1064-1065.)

Here, the Defendant

has not promoted the proximity of their hotels to California nor provided driving directions from California to their hotels. The sole similarity lies in the fact that individuals may reserve a hotel room through one of the alleged websites associated with Defendant. This does not adequately demonstrate that Defendant “purposefully directed commercial activity toward California.”

As such, Plaintiffs fail to

show purposeful availment under this theory.

Autograph Collection Franchise

Moreover, Plaintiffs contend that

“[Defendant’s] Autograph Collection franchise disclosures also reveal that at the relevant time [Defendant] availed itself to the benefits of doing business in California by maintaining a franchise registered agent and regulatory authority in California and that [Defendant] appeared to operate a California specific entity for franchise-related California transactions[.] (Reis Decl. Ex. 8 at pp. 311, 314, 478.)” (Opp., p. 6:17-21.)

However, the Court observes

that, following the sustainment of Defendant’s objection to Exhibit 8, Plaintiffs lack the necessary supporting evidence for their assertion. As such, Plaintiffs fail to show purposeful

availment under this theory.

Benefits Membership

“[W]here the defendant ‘deliberately’ has engaged in significant activities within a State, [citation], or has created ‘continuing obligations’ between himself and residents of the forum, [citation], he manifestly has availed himself of the privilege of conducting business there, and because his activities are shielded by ‘the benefits and protections’ of the forum’s laws it is presumptively not unreasonable to require him to submit to the burdens of litigation in that forum as well.” (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 475-476, emphasized added.)

Plaintiffs further contend that

“[Defendant] also created continuing obligations running to a California resident. Annex A of the contract designates Sabio’s California-based CEO — by name, Marriott Bonvoy membership number, and Sabio email address — as the Marriott Bonvoy Events member entitled to benefits in connection with the event, under program terms constituting an agreement with and modifiable at the sole discretion of [Defendant]. (Rahimtoola Decl., ¶ 8; Cmpl., Ex. A, Annex A, Reis MII Decl., Ex. 6.) A defendant that ‘creat[es] continuing obligations between [itself] and residents of the forum’ has availed itself of the forum’s benefits and may be required to answer there. (Burger King, supra, 471 U.S. at pp. 475–476.) [Defendant’s] own loyalty program, embedded in the contract’s benefits provisions and directed at an identified Californian, is precisely such an obligation — and [Defendant’s] declarant concedes the conduit: [Defendant] licenses its ‘intellectual property and systems’ for use at the Resort. (Tamburello Decl., ¶ 6.)” (Opp., p. 7:7-17.)

However, the loyalty program

does not constitute a continuing obligation. According to the terms set forth in Annex A of the contract referenced in the Complaint, members, including the CEO of Sabio Holding, are granted points or miles upon the booking of an event or stay. (Cmpl., Exh. A., Annex A.) Once the event or stay has concluded, the obligation is deemed fulfilled, and the member receives the corresponding points or miles. A new obligation towards the CEO of Sabio Holding arises only when a subsequent booking for another event or stay is made. Consequently, the Court cannot categorize this arrangement as a continuing obligation, as Defendant’s

alleged obligation is contingent upon future bookings.

As such, the Plaintiffs failed to show purposeful availment under this theory. Absent satisfaction of the first prong, Plaintiff has not established specific jurisdiction.

General Jurisdiction

Plaintiffs contend that Defendant's connections to California were both continuous and systematic, establishing general jurisdiction. (Opp., p. 12:1-27.)

"General (also called all-purpose) jurisdiction means that a defendant's contacts with a state are sufficiently extensive that the 'defendant is "essentially at home," ' and the court may exercise jurisdiction over the defendant regardless of whether the claims relate to the forum state." (Doe v. Dameron (2021) 70 Cal.App.5th 684, 689-690.) "[T]he proper inquiry, this Court has explained, is whether a foreign corporation's 'affiliations with the State are so "continuous and systematic" as to render [it] essentially at home in the forum State. [Citation.]" (Daimler AG v. Bauman (2014) 571 U.S. 117, 119, internal citation omitted.)

Plaintiffs contend that "[t]he record shows that Sabio's Chief Executive Officer transacted with [Defendant's] interactive booking platforms from California in the very transaction at issue (Rahimtoola Decl., ¶ 6), and that those platforms maintain consumer disclosures directed specifically to California residents [(Reis MII Decl., Exs. 2-6) —underscoring that MII maintains an ongoing California facing enterprise." (Opp., p. 12:15-19.) The Court, however, finds this argument unpersuasive.

The Court finds that the record indicates the CEO interacted with the booking platform, but it does not substantiate that he booked any room or made any transaction through one of Defendant's alleged websites.

(Declaration of Aziz Rahimtoola, ¶ 8.)

Moreover, as discussed above, the Court finds that Defendant did not directly target California residents.

Furthermore, Plaintiffs contend

that Defendant's "franchise disclosures also reveal that at the relevant time [Defendant]

maintained a franchise registered agent and regulatory authority in California

and that [Defendant] appeared to operate a California specific entity for

franchise-related California transactions[.] (Reis Decl. Ex. 8 at pp. 311, 314, 478.)" (Opp., p. 12:20-23.) However, this claim lacks merit because

Plaintiffs have not provided admissible evidence to support their position.

Lastly, Plaintiffs

contend that "during the relevant time frame, Marriott maintained over 500

properties in California." (Opp., p.

12:19-20.) Yet, it is unclear why this

information is relevant, as Plaintiffs do not demonstrate that Defendant, rather than "Marriott," owned,

maintained, or otherwise controlled these properties.

As such, Plaintiff has failed

to show personal jurisdiction based on these theories.

Jurisdictional Discovery

If the Court determines that

personal jurisdiction cannot be established based on the evidence presented, as

it already has, Plaintiffs request that the Court continue the hearing and

grant permission for jurisdictional discovery.

(Opp., p. 13:1-14:8.) The Court DENIES

this request.

"A plaintiff attempting to

assert jurisdiction over a nonresident defendant is entitled to an opportunity

to conduct discovery of the jurisdictional facts necessary to sustain its

burden of proof. [Citation.] In order to prevail on a motion for a

continuance for jurisdictional discovery, the plaintiff should demonstrate that

discovery is likely to lead to the production of evidence of facts establishing

jurisdiction. [Citation.] ... A

ruling on a motion to continue in order to allow additional time to discover

jurisdictional facts lies in the trial court's discretion." (In re Automobile Antitrust Cases I &

II (2005) 135 Cal.App.4th 100, 127, internal citations omitted.)

Plaintiffs assert that the

following discovery requests, propounded on July 10, 2026, will facilitate their evaluation of the jurisdictional questions presented by the motions: (1) "the franchise agreement and related intercompany agreements;" (2) "documents defining [Defendant's] rights and role concerning reservations, marketing, brand standards, and the licensed 'systems';" and (3) "Marriott Bonvoy participation documents for the Resort; and reservation channel and booking records for Sabio's event." (Opp., pp. 13:27-14:3.) But, Plaintiffs fail to articulate how these specific discovery requests are likely to lead to the production of evidence of facts establishing jurisdiction. As such, this request is DENIED.

Accordingly, the Defendant's motions to quash service of the summons is GRANTED.

ORDERS

1) Specially

Appearing Defendant Marriot International, Inc.'s Motion to Quash Plaintiffs' Service of Summons and Complaint for Lack of Personal Jurisdiction is GRANTED.

2) Plaintiffs

Sabio Holdings Inc. and Sabio Inc.'s Requests to Continue the Hearing and Permit Jurisdictional Discovery are DENIED.

3) Defendant

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 10, 2026

Tamara
Hall

Judge
of the Superior Court